

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

FAO No.216 of 2016

**Board of Intermediate and Secondary Education, Gujranwala,
through its Chairman.**

Versus

**Sardar Asghar Ali (Deceased) through Legal Hiers &
another.**

J U D G M E N T

Date of hearing: 25.04.2016.

Appellant by: Mr. Ali Masood Hayat, Advocate.

Respondents by: M/s. Asjad Saeed and Muhammad Jehangir
Asif, Advocates.

MUHAMMAD SAJID MEHMOOD SETHI, J.: This consolidated judgment shall dispose of instant appeal along with following connected appeals as common questions of law and facts are involved in these cases:

1. **FAO No.217 of 2016** titled Board of Intermediate and Secondary Education, Gujranwala through its Chairman v. Mst. Zarina Begum alias Zarina Masood, etc.
2. **FAO No.218 of 2016** titled Board of Intermediate and Secondary Education, Gujranwala through its Chairman v. Sardar Jehanzaib Ali, etc.
3. **FAO No.219 of 2016** titled Board of Intermediate and Secondary Education, Gujranwala through its Chairman v. Mst. Zohra Begum (Deceased) through Legal Heirs & another.

2. Brief facts of the case are that land of respondent No.1 (I) to 1 (IV), measuring 02-Kanals and 13-Marlas, detailed in para 3 of the appeal, was acquired for construction of office of the appellant. Award dated 29.10.1987 was announced, wherein compensation of Rs.2193.4 per Marla was determined. Feeling aggrieved, respondents filed reference under Section 18 of the Land Acquisition Act, 1894 (“Act”), before Collector, which was

accordingly entrusted to the referee Court/Senior Civil Judge, Gujranwala. On post remand, learned referee Court vide consolidated judgment and decree dated 11.06.2007, partly allowed the references including that of respondents No.1 (I) to 1 (IV), whereby the compensation was enhanced to Rs.5500/- per Marla instead of Rs.2193.4 per Marla. Feeling aggrieved, four Regular First Appeals were preferred by the appellant against said consolidated judgment and decree. Learned Division Bench of this Court, vide consolidated judgment and decree dated 20.03.2014, passed in **RFA No.364 of 2007** titled Land Acquisition Collector, etc. v. Sardar Asghar Ali, partly allowed the appeals whereby compensation was enhanced from Rs.5500/- per Marla to Rs.7500/- per Marla with no other relief. Respondents No.1 (I) to 1 (IV) filed execution petition before Senior Civil Judge, Gujranwala, wherein the respondents averred to have already received an amount of Rs.1,33,671.88/-, and following calculations were made:-

“Rs.7500 x (2-Kanals 13-Marlas)
 Rs.7500 x 53-Marlas = 3,97,500/-
 15 % compulsory acquisition charges of Rs.3,97,500/- =
 59,625/-
 3,97,500 + 59,625 = 4,57,125/-
 Already Paid
 4,57,125 – 133,671.88 = 3,23,453.12/-”

While in para 8 of the execution petition, in terms of Section 28 (2) of the Act, they sought compound interest at the rate of 8 % w.e.f. 09.08.1987 to 09.07.2014. Thus, total amount claimed by said respondents / decree holders was calculated to the tune of Rs.25,83,763/-. The appellants filed objection petition under Section 47 CPC. Learned executing Court, after hearing the arguments, proceeded to dismiss the said objection petition vide order dated 15.03.2016. Hence, instant appeal against the aforesaid order.

3. Learned counsel for appellant submits that impugned order has been passed in violation of law laid down by Hon’ble Supreme

Court of Pakistan in Sardar Ahmed Yar Khan Jomezai and 2 others v. Province of Balochistan through Secretary, C & W Department (2002 SCMR 122), Irshad Masih and others v. Emmanuel Masih and others (2014 SCMR 1481), Ch.Ahmed Nawaz v. Province of Punjab through Land Acquisition Collector, Jhelum and others (2015 SCMR 823) and Abdul Habib v. Fazal Muhammad and 2 others (2012 MLD 1856). He adds that the executing Court cannot go beyond the decree. In the end, he submits that impugned order is not sustainable in circumstances.

4. On the other hand, learned counsel for respondents defends the impugned order and submits that the same is absolutely in accordance with law. He adds that appellant is under statutory obligation to pay the compulsory acquisition charges at the rate of 15 % as well as compound interest at 8 % per annum. He adds that learned counsel for appellant has failed to point out any illegality or legal infirmity in the impugned order. In support of his contentions, he has placed reliance upon Syed Saadi Jafri Zainabi v. Land Acquisition Collector and Assistant Commissioner (PLD 1992 Supreme Court 472), Sheikh Muhammad Ilyas Ahmed and others v. Pakistan through Secretary Ministry of Defence, Islamabad and others (PLD 2016 Supreme Court 64), Hafeez Ahmad and others v. Civil Judge, Lahore and others (PLD 2012 Supreme Court 400), Jane Margrete William v. Abdul Hamid Mian (1994 SCMR 1555), Fakir Abdullah and others v. Government of Sindh through Secretary to Government of Sindh, Revenue Department, Sindh Secretariat, Karachi and others (PLD 2001 Supreme Court 131), Hameed Akhtar Niazi v. The Secretary, Establishment Division, Government of Pakistan and others (1996 SCMR 1185), Government of Punjab, through Secretary Education, Civil Secretariat, Lahore and others v. Sameena Parveen and others (2009 SCMR 1), Islamic Republic of Pakistan v. Muhammad Saeed (PLD 1961 Supreme Court 192), Ch. Ahmed Nawaz v. Province of

Punjab through Land Acquisition Collector, Jhelum and others (2015 SCMR 823), Sindh High Court Bar Association through its Secretary and another v. Federation of Pakistan through Secretary, Ministry of Law and Justice, Islamabad and others (PLD 2009 Supreme Court 879), Sh. Ghulam Mohammad and another v. The Bank of Bahawalpur Ltd. and 21 others (1971 SCMR 148), Wasal Khan and others v. Dr. Niaz Ali Khan (2016 SCMR 40), Mst. Nasreen Zahra and others v. Multan Development Authority, Multan and others (2015 SCMR 1440) and Land Acquisition Collector and 6 others v. Muhammad Nawaz and 6 others (PLD 2010 Supreme Court 745).

5. Arguments heard. Record perused.
6. The operative part of impugned order dated 15.03.2016 is reproduced hereunder:-

“Bare perusal of Sec.23 & 34 of Land Acquisition Act 1894 beckon to the fact that while computing compensation amount compulsory acquisition charge at the rate of 15 % and compound interest at the rate of 8 % will be awarded which will be independent of the compensation amount. In the ibid act compulsory acquisition charges and compound interest have independent entities. The law of the land is quite unequivocal regarding award of such compulsory acquisition charges and compound interest. This court does concur with the stance of learned counsel for the decree holder that said interest and compulsory acquisition charges will be part and parcel of award. It is not within the domain of any court to increase or decrease rate of compulsory acquisition charge and the compound interest. It is only the compensation amount which can be modified or varied by the court. This court is also of the view that by incorporating Se.23 & 34 of Land Acquisition Act 1894 the legislation has propounded the notion of “automatic inclusion” of compulsory acquisition charges at the rate of 15 % and compound interest at the rate of 8 % which right cannot be taken away by the act of court. In the esteemed judgment **PLD 2016 Supreme Court 64**, the august Supreme Court of Pakistan has also held that award of compound interest is statutory in nature which cannot be withheld. The case law cited by the learned counsel for the decree holder squarely deal with the proposition in hand and lend credence to stance of the learned counsel for the decree holder.

Therefore, after taking stock of whole matter, this court holds that while computing decretal amount compulsory acquisition charges at the rate of 15 % and compound interest at the rate of 8 % will be calculated in view of the compensation amount of Rs.7500/- per Marla. Application is dismissed. In view of intricate calculation decree holder is directed to submit in tabular form the exact outstanding decretal amount on 24.3.2016.”

7. The above reproduced operative part of impugned order shows that learned executing Court, while relying upon Sheikh Muhammad Ilyas Ahmed and others v. Pakistan through Secretary Ministry of Defence, Islamabad and others (PLD 2016 Supreme Court 64), came to the conclusion that compulsory acquisition charges as well as compound interest are statutory in nature and these are to be added in the compensation amount decreed by the Court automatically.

8. Under the law, decree can be executed in light of terms and conditions mentioned therein. Executing Court cannot go beyond the decree. Duty of executing Court is to dispose of objections filed by objector in light of terms and conditions of decree. Executing Court, during execution proceedings, can neither go beyond the decree nor grant a relief not awarded in judgment and decree. It is now well-settled that if no decree of compound interest and 15 % compulsory acquisition charges has been passed in the original decree, and if that decree is not challenged before the higher fora, the same attains finality and executing Court cannot modify it. Executing Court has to calculate the amount in terms of the decree passed by learned trial Court / appellate Court. The impugned findings of learned Executing Court are not in line with the law laid down by the Hon’ble Supreme Court in the case of Ch.Ahmed Nawaz supra, the operative part of which reads as under:-

“2. We have heard the appellant in person and find that no decree ever was passed in his favour by the Referee Judge in terms of section 34 granting him compound interest and this decision was not challenged by the appellant either in review or appeal, therefore such decree attained finality. Obviously the

Executing Court in the facts and circumstances could not modify the decree and go beyond it. The judgment reported as *Government of Sindh and 2 others v. Syed Shakir Ali Jafri and 6 others* (1996 SCMR 1361) wherein it was held that “Accordingly the executing Court was directed to proceed with the execution application and to recalculate the decretal amount “in terms of the above modification”. In this Court’s judgment dated 3.11.1992, it was held that “there is a marked distinction between drawing of a decree and calculation of the amount in terms of the decree. The Court’s duty is to draw a decree in terms of the judgment, whereas it is for the decree-holder to calculate the amount in terms of such a decree and it is for the judgment-debtor to point out calculation mistake, if any, but the judgment-debtor cannot challenge the merits of the decretal items while challenging the calculation of the decretal amount,” is distinguishable on its own facts. It was never held in the judgment (*supra*) that while executing the decree and ascertaining the exact amount payable thereunder in the process of calculation, the Executing Court could grant a relief to the decree-holder which was never awarded to him under the decree. Resultantly, we do not find any merit in this appeal which is accordingly dismissed.”

9. It is now settled that the executing Court could not extend its jurisdiction to go behind the decree. It could not entertain application which may change and alter terms of decree. Executing Court could neither go behind the decree nor it had jurisdiction to re-determine the liability of any party or reconsider law for such purpose or award a relief not granted in the judgment. A party aggrieved of the decree, could only assail it before appropriate appellate forum only or any other remedy provided by law. Reference in this regard can be made to *Province of Punjab through Collector, Bahawalpur v. Ghulam Rasool and others* (1990 SCMR 1106), *Allah Ditta v. Ahmed Ali Shah and others* (2003 SCMR 1202), *Muhammad Tariq Khan v. Khawaja Muhammad Jawad Asami and others* (2007 SCMR 818), *Tauqeer Ahmad Qureshi v. Additional District Judge, Lahore and 2 others* (PLD 2009 Supreme Court 760), *Irshad Masih and others v. Emmanuel Masih and others* (2014 SCMR 1481), *Abdul Habib v. Fazal Muhammad and 2 others* (2012 MLD 1856), *Habib Bank Limited through Authorized Attorneys v. Pak Poly Products (Pvt.) Ltd. and 3 others*

(2013 CLD 1661) and *Government of Khyber Pakhtunkhwa and others v. Mst. Zubaida* **(2013 YLR 372)**.

10. The Hon'ble Supreme Court, in the case of Ch. Ahmed Nawaz, supra, has enunciated a principle of law, and the same would have binding effect on all Courts in Pakistan, in terms of Article 189 of the Constitution of the Islamic Republic of Pakistan, 1973 ("Constitution"). Where the Hon'ble Supreme Court deliberately and with the intention of settling the law, pronounces upon a question, such pronouncement is the law declared by the Hon'ble Apex Court within the meaning of Article 189 of the Constitution, and is binding on all Courts in Pakistan. Such pronouncement cannot be treated as mere obiter dictum. Even obiter dictum of the Hon'ble Apex Court, due to the high place which the Hon'ble Court holds in the hierarchy of the Courts in the country, enjoy a highly respected position as if it contains a definite expression of the Court's view on a legal principle, or the meaning of the law. Reference, in this regard, can be made to *Justice Khurshid Anwar Bhinder and others v. Federation of Pakistan and another* **(PLD 2010 Supreme Court 483)**.

11. So far as the argument of learned counsel for respondents that it was merely unintentional omission on part of the Court, therefore, it can be corrected under Section 152 CPC, is concerned, suffice it to say that no such application has been made, therefore, benefit of judgment reported as *Syed Saadi Jafri Zainabi v. Land Acquisition Collector and Assistant Commissioner* **(PLD 1992 Supreme Court 472)** cited by learned counsel for respondents, cannot be extended to the respondents.

12. There is no cavil with the proposition of law propounded by learned counsel for respondents that Court is never impressed with technicalities; place of procedure is to help and not to thwart grant of rights to the people; proper place of procedure is to provide stepping stones and not stumbling blocks in the way of

administration of justice; and ordinarily the executing Court would not travel beyond the decree, but can question its legality under Section 47 CPC. Needless to observe here that appropriate course for respondents was to either assail the appellate decree before Hon'ble Apex Court and ask for further relief of compound interest as well as 15 % compulsory acquisition charges for which they claim to be entitled under the law, or seek amendment of the decree by means of appropriate application as pleaded by learned counsel for respondents.

13. Resultantly, instant appeal, along with connected appeals, is hereby **allowed** and the impugned order dated 15.03.2016 is set aside. Consequently, objection petition filed by appellant is accepted.

(Muhammad Sajid Mehmood Sethi)
Judge

Approved for reporting.

Judge

A.H.S.

Form No: HCJD/C-121

**ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT**

FAO No.216 of 2016.

Board of Intermediate and Secondary Education, Gujranwala
Versus
Sardar Asghr Ali, etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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C. M. No. 3-C of 2016

25.04.2016. Mr. Ali Masood Hayat, Advocate for applicant.
M/s. Asjad Saeed and Muhammad Jehangir Asif,
Advocates for respondents.

This is an application under Section 151 CPC for
placing of certain documents, which is **allowed** subject
to all just and legal exceptions.

C. M. NO.4-C OF 2016.

2. Dispensation, sought for, is **allowed** subject to all
just and legal exceptions.

(Muhammad Sajid Mehmood Sethi)
Judge

A.H.S.